Republika e Kosoves - Republika Kosova - Republic of Kosovo
Qeveria - Vlada - Government
Minisnia c Financave, runes dhc Transtercve - Minisrarstvo Finansija, Rada i Transfcra -
Ministry of Finance, Labour and Transfers
Administrata Tatimore e Kosoves - Poreska Adndnistracija Kosovo -Tax Administration of Kosovo

CONDITIONS AND PROCEDURES FOR APPLICATION, CERTIFICATION AND MAINTENANCE OF ELECTRONIC FISCAL SOFTWARE (EFS)

Pursuant to the provisions of Article 36, paragraph 5 of the Administrative Instruction (MFLT) No. 01/2025 on the Use of Electronic Fiscal Devices, Fiscal Systems and Electronic Fiscal Software, in accordance with the legal powers set out in Article 49, paragraph 1 of Law No. 08/L-257 on the Administration of Tax Procedures, as well as the Decision of the General Director of the Tax Administration of Kosovo No. 01-06-2304 dated 25.04.2025 on the Establishment of the Commission responsible for the preparation of the document for determining the Conditions and Procedures for Application, Certification and Maintenance of Electronic Fiscal Software (EFS), the Commission, in the exercise of its legal responsibilities, issues the following document:

CONDITIONS AND PROCEDURES FOR APPLICATION, CERTIFICATION AND MAINTENANCE OF ELECTRONIC FISCAL SOFTWARE (EFS)

Article 1
Purpose

This Document shall define in detail the conditions, criteria and procedures for application, certification and maintenance of Electronic Fiscal Software (EFS) by natural and legal persons, in accordance with the legal provisions, as well as technical and functional requirements set out in Administrative Instruction No. 01/2025 on the Use of Electronic Fiscal Devices, Fiscal Systems and Electronic Fiscal Software.

Article 2
Scope

This Document shall apply to all natural and legal persons applying for certification and maintenance of Electronic Fiscal Software (EFS), in the framework of the implementation of the taxpayer fiscalization system, in accordance with Administrative Instruction No. 01/2025 on the Use of Electronic Fiscal Devices, Fiscal Systems and Electronic Fiscal Software and the technical and functional specifications determined by the Tax Administration of Kosova.

Article 3
Definitions

The terms used for the purposes of this document shall have the following meaning:

1. **Electronic Fiscal Software** (EFS) — is electronic software developed to record and report taxpayers' financial transactions in an automated manner and in accordance with tax legislation in the Republic of Kosova. Through EFS, supplies of goods and/or services are recorded for retail transactions, fiscal receipts are generated and data are reported in real time to the TAK Information System;

2. **Fiscal receipt —** is a document in which the supply of goods and/or services is recorded at the point of sale for the end user/customer. The fiscal receipt is generated by the Electronic Fiscal Device/Fiscal System/Electronic Fiscal Software (EFD/FS/EFS), which is printed on paper or may be sent electronically for specific supplies (electronic supplies). The specific characteristics of the fiscal receipt are: fiscal logo and 2D barcode signature (electronic signature generated by encrypting data in the Fiscal Document - QR Code). Other characteristics will be defined in the specific technical and functional requirements document for EFD/FS/EFS;

3. **Person —** means a non-business natural person, as well as a business natural person and a legal person registered as a business, who carries out business activity in accordance with the legislation in force.

Article 4
Legal basis

1. Law No. 08/L-257 on the Administration of Tax Procedures, Article 3, paragraphs 1.29, 1.30 (sub-paragraphs 1.30.1 and 1.30.2), as well as paragraph 1.33.

2. Administrative Instruction (MFLT) No. 01/2025, dated 15.04.2025 on the Use of Electronic Fiscal Devices, Fiscal Systems and Electronic Fiscal Software, Article 36, paragraph 5.

3. Decision of the General Director of the Tax Administration of Kosovo No. 01-06-2304 dated 25.04.2025 on the Establishment of the Commission responsible for the preparation of the document for determining the Conditions and Procedures for Application, Certification and Maintenance of Electronic Fiscal Software (EFS).

Article 5
Conditions and Procedures for Application, Certification and Maintenance of Electronic Fiscal Software (EFS)

1. Pursuant to 36 of Administrative Instruction No. 01/2025 on the Use of Electronic Fiscal Devices, Fiscal Systems and Electronic Fiscal Software are defined obligations, procedures and conditions for the exercise of the activity of EFS developers and/or maintainers in the territory of the Republic of Kosova.

2. Any natural or legal person, including individuals and registered business entities, who intends to develop or maintain an Electronic Fiscal Software, must act in accordance with the technical and functional specifications determined by the Tax Administration of Kosova (TAK).

3. Before starting to provide these services for taxpayer fiscalization purposes, EFS developers and/or maintainers are required to apply for registration and certification of the software before the Commission established within TAK. This authorization is a prerequisite for the legal exercise of this activity.

4. The application for certification and maintenance of the EFS is submitted in person, by submitting a written request to the TAK Headquarters, along with the relevant documentation, according to the conditions set out in Administrative Instruction No. 01/2025 on the Use of Electronic Fiscal Devices, Fiscal Systems and Electronic Fiscal Software.

5. Any non-business natural person, business natural person or legal entity applying for certification and maintenance of an Electronic Fiscal Software (EFS) before the Tax Administration of Kosova (TAK), must submit the relevant application together with the following documentation:

    5.1. **Application for EFS certification —** standard application form (the form attached to this Document), completed with all necessary data (name, version and short description (specification) of the software solution) and contact information (name, surname of the contact person, telephone number, email address, PO Box, etc.), and signed by the applicant;

    5.2. **Copy of a valid Personal Identification Number (PIN),** issued by competent authorities, which certifies the applicant's status as a resident or non-resident person in the Republic of Kosova;

    5.3. **Copy of a Business Registration Certificate,** issued by the Kosovo Business Registration Agency (KBRA), if the applicant is a natural person, business person or legal entity;

    5.4. **Copy of a Fiscal Number Certificate,** issued by TAK, if the applicant is a consortium;

    5.5. **Detailed technical description of EFS,** including architecture, functionalities and integration method (interlinking of EFS and TAK systems);

    5.6. Proof of ownership, copyright or authorization for installation and maintenance delegated by the software manufacturer.

    5.7. **Detailed description of the technical solution for storing untransmitted transactions,** including the location, security and method of initiating automatic transmission after re-establishing the communication connection with the ATK system;

    5.8. **User manual and installation instructions**;

    5.9. **EFS Audit Module Manual**;

    5.10. T**he Economic Operator must have technical capacities**, human resources, at least one database administrator and two software developers, for the core technology used in the development and maintenance of the EFS;

5.11. **Demo version of the software,** in electronic format (USB, CD or any other suitable media);

5.1. **List of components and technologies used for the software development**;

5.13. **EFS version source code documentation**, including the complete application and with special emphasis on encryption, storage and transmission policies, security and local traces, etc.;

5.14. **Software compliance declaration,** confirming that the software complies with legal requirements and technical and functional specifications set by TAK;

5.15. **Certificate of criminal convictions**;

5.16. **Any other relevant document**, if required or deemed relevant for the consideration of the application.

Article 6
Technical testing and reviewing procedure

1. After submitting the relevant documentation, the Certification Commission shall review the application and materials submitted by the applicant and, subsequently, invite the latter to undergo the technical testing process.

2. During the testing phase, the Commission shall evaluate the following key aspects:

2.1. Software compliance with technical and functional specifications set by the Tax Administration of Kosova (TAK);

2.2. The level of security and integrity of data processed and transmitted by the software;

2.3. The accuracy and compliance of the generation of fiscal receipts with the required official format;

2.4. Correct and regular reporting of data in the TAK system;

2.5. Other important technical and functional aspects for fiscalization purposes

Article 7
Decision-making regarding EFS certification

1. The EFS Certification Commission shall review the application and shall make a decision on certification or non-certification within fifteen (15) business days from the date of receipt of the application (complete documentation).

2. In case of approval of the application, to applicant is issued a valid official certificate, while the software is assigned a Unique Identification Number (UIN), in accordance with the procedures established by the Tax Administration of Kosova.

3. In case of rejection, the applicant is notified in writing of the reasons for non-certification and is given the opportunity to review and resubmit the application, as well as to submit a new application.

Article 8
Entry into force

1. This Document shall enter into force on the date of its signing by the responsible Commission.

2. This Document shall be published on the official website of the Tax Administration of Kosova.

Date: *12.06.2025*

Commission:

1. Bashkim Shala, Chairperson;

2. Aferdita Shabani, Member;

3. Zana Bucaliu, Member;

4. Afrim Berisha, Member; and

5. Behar Haziri, Member.

Republika e Kosovës - Republika Kosova - Republic of Kosovo
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APPLICATION FOR CERTIFICATION AND MAINTENANCE OF ELECTRONIC FISCAL SOFTWARE (EFS)

UIN/FN/ID:

Name of Applicant:

Address of Applicant: Municipality:

PO Box: E-mail address:

Contact Person: Telephone:

Any non-business natural person, business natural person or legal entity applying for certification and maintenance of an Electronic Fiscal Software (EFS) at the Tax Administration of Kosova (TAK), must complete this form and submit the relevant documentation according to the document on the conditions and procedures for application, certification and maintenance of the EFS:

EFS name: EFS version:

Description of software solution:

- ☐ Copy of Personal Identification Number (PIN)
- ☐ Copy of Business Registration Certificate (UIN)
- ☐ Copy of Fiscal Number Certificate of the consortium (FRN)
- ☐ Detailed technical description of EFS
- ☐ Proof of ownership, copyright or authorization for installation and maintenance delegated by the software manufacturer
- ☐ Detailed description of the technical solution for storing untransmitted transactions
- ☐ User manual and installation instructions
- ☐ EFS Audit Module Manual
- ☐ Declaration of software compliance with fiscal legal requirements and functional technical specifications
- ☐ Demo version of the software
- ☐ List of components and technologies *(Programming languages and Databases)*
- ☐ EFS version source code documentation
- ☐ Certificate of criminal convictions
- ☐ Any other relevant document:

Date :

Applicant's signature